

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 6

Honorable Rafael Sivilla-Jones, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2160

August 25, 2026

9:00 and 9:01 A.M.

RECORDING COURT PROCEEDINGS IS PROHIBITED

ORAL ARGUMENT

Before 4:00 PM today you must notify the:

- (1) Court by calling (408) 808-6856 and
- (2) Other side by phone or email that you will appear at the hearing to contest the tentative

If you fail to so notify the court or opposing side, the Court will not hear argument, and the tentative ruling will be adopted. (California Rule of Court 3.1308(a)(1) and Local Rule 8.E.)

REMOTE APPEARANCES

Phone only appearances are PROHIBITED. In-person appearances are preferred.

For necessary virtual appearances, you **must use video** and follow **Civil Local Rule 5**.

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Department 6: <https://santaclara.courts.ca.gov/online-services/remote-hearings>

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1-2	16CV294537	4 TH Street SJ vs Metro Eight Properties	Line 1—Plaintiff moves this court to assign Defendant Milpitas Villas judgment debtor rights to payments of rents due. In this case a court trial was held and a verdict in favor of Plaintiff was entered in favor of Plaintiff for a total amount of damages of \$406,718.90. The trial court’s judgment was affirmed by the court of appeals on March 19, 2026. Plaintiff is judgment creditor and sublessee under an existing sublease. None of balance has been paid off. Defendant Milpitas Villas submitted no objections to this motion. Under CCP 708.520(d), the court may assign right to payments to pay off judgment in full. Plaintiff’s motion to assign Defendant Milpitas Vista’s rights to past and future payments from to Plaintiff is GRANTED; Defendant Milpitas Vista is ordered restrained from encumbering or transferring any payments under this sublease until judgment is paid off. Line 2: Plaintiff moves this court to award attorney fees to Plaintiff. Plaintiff prevailed in its court trial and prevailed after Defendant appealed verdict. Plaintiff seeks costs of defending the appeal. No objection was filed by Defendant. Court finds attorney fees requested by Plaintiff of \$31,466.17 to be reasonable. Plaintiff’s motion for attorney fees in the amount of \$31,466.17 is GRANTED.
9:00 3	23CV422621	Michael Hertz vs. Mark Olivarez, et.al.	Plaintiff moves this court to discharge referee and deposit the pre-buy out common interest rental funds into the Court’s trust account. Defendant does not object to the discharge of referee. Plaintiff and Defendant entered into a stipulated agreement that the funds from a sale of a property would be held by a property manager who would be responsible for payouts. Some of the particular invoices are disputed. Thus Plaintiff’s motion to discharge referee is GRANTED. However, Plaintiff’s request to deposit the pre buyout common interest rental funds into the Court’s trust account is DENIED.
9:00 4	23CV425697	Lara McCabe vs. Santa Clara County	Defendant moves this court to dismiss the case under CCP 472(b). In this case, the trial court granted Defendant’s demurrer. The plaintiff successfully appealed the demurrer. Defendant argues that Plaintiff did not file its amended complaint within the 30 days deadline under CCP 472(b). Plaintiff persuasively argues that CCP 472b applies only when time to amend is given. In this case, the appellate opinion does not give any time for Plaintiff to amend. Defendant’s motion is DENIED.
9:00 5-7	23CV428070	“Janine” Chun Lu vs. Marc Goubert,et.al.	See below
9:00 8	24CV430815	Karen Briggs vs. Ford Motor Company	Plaintiff moves this court for attorney fees as the prevailing party. Defendant filed no objections to this motion. Plaintiff’s motion for attorney fees in the amount of 423,537.29 is GRANTED.
9:00 9-10	24CV436120	Kaelly Maycock vs. Matthew Santiago, et.al.	Defendant moves to quash Plaintiff’s deposition subpoena for Uber Technologies. This court finds that the subpoena is narrowly tailored to the relevant issues of the case. A stipulated protective order is in effect to protect privileged interests. Defendant’s motion to quash deposition subpoena is DENIED. Defendant moves to quash Plaintiff’s deposition subpoena for Lyft. This court finds that the subpoena is narrowly tailored to the relevant issues of the case. A stipulated protective order is in effect to protect privileged interests. Defendant’s motion to quash deposition subpoena for Lyft is DENIED.

9:00 11	24CV441131	Gray West Construction vs. Elks Lodge	Defendant petitions this court to compel plaintiff to respond to defendant's special interrogatories. Special Interrogatory Nos. 6 and 7 request identification of supporting documents to Plaintiff's damages claim. This court finds the request to be relevant and reasonable. Defendant's petition to compel as to Special Interrogatories 6 and 7 is GRANTED. Special Interrogatories Nos. 13, 14, and 15 seeks information to justify the damages sought by Plaintiff. This court agrees with the Defendant that Plaintiff's responses need to inform the Defendant of the actual defects alleged. Defendant's petition as to Special Interrogatories 13, 14, and 15 are GRANTED. Special Interrogatories 16, 17, 18 and 19 relate to misrepresentation and overcharge claims. Plaintiff's responses are not specific as to the fraud allegations. Defendant's petition as to Special Interrogatories 16, 17, 18 and 29 are GRANTED. Special Interrogatory No. 35 requests Plaintiff to identify proposed change order communications by bates range. This court finds the request to be relevant and reasonable. Defendant's petition as to Special Interrogatory No. 35 is GRANTED.
9:00 12	24CV449229	Andrew Little vs. Shuo Rong, et.al.	Defendant City of San Jose moves this Court to determine that the settlement entered into between the Plaintiff and the City was made in good faith under CCP 877 and 877.6(a)(1). Settlement was reached between the Plaintiff and the City regarding a traffic collision that occurred on November 8, 2023. Defendant filed no objection to this motion. Defendant's motion is GRANTED. Any current or future claim against the City of San Jose for equitable comparative contribution, partial or comparative indemnity, or comparable fault based reimbursement arising from the November 8, 2023 incident if ordered barred.
9:00 13	25CV467015	Dmitri Dolgov, et.al. vs. Jerry Kwok, et.al.	Plaintiff filed a petition to compel further responses to form and special interrogatories regarding Millenium Construction. Plaintiff's petition argues that Defendant failed properly identify photographs submitted in response to Form Interrogatory 311.1. Plaintiff's petition as to Form 311.1 is GRANTED. Plaintiff petitions this court to respond to a request for specific dates. Defendant argues that at all relevant times defendant was supervising work done. This answer does not appear to be sufficient. Plaintiff's petition as to further responses for Form 321.4 is GRANTED. Plaintiff petitions this court to compel Defendant for responses as to Special Interrogatories. This court agrees with Defendant that Plaintiff failed to submit a separate statement indicating individual interrogatories and responses and thus was not code compliant. Plaintiff's petition to compel further responses as to Special Interrogatories is DENIED. Monetary sanctions are DENIED. Plaintiff petitions this court to compel discovery of Pacific Realty. Plaintiff request contact information related to financial institutions used by Pacific Realty. Such information is not protected by a company's privacy interests. Plaintiff's petition to compel discovery of Special Interrogatories Nos. 70, 82, and 103 are GRANTED. This court finds that Defendant Pacific Realty's responses to Special Interrogatories Nos. 24-27 are sufficient. Plaintiff's petition to compel discovery of Special Interrogatories Nos. 24-27 are DENIED. Defendant seeks leave to amend answer to change Defendants answer to Form Interrogatory 326.1, Request for Admission No. 8 from DENY to ADMIT. Defendant's petition is GRANTED. Plaintiff petitions this court to compel further response to Form Interrogatory 326.1, Request for Admission No. 9. Defendant fails to identify documents, provide contact information, or specific facts to support its answer. Plaintiff's petition to compel further discovery for Form Interrogatory 326.1, RFA No. 9 is GRANTED. Monetary sanctions are DENIED.

9:00 14	25CV479082	Ahead Magnetics vs IsenseCloud, Inc.	Defendant moves this court to quash Plaintiff's subpoena of documents and deposition. Defendant argues that Plaintiff's subpoenas are overbroad and premature. This court disagrees. The subpoenas issued by Plaintiff are relevant to the causes of action filed by Plaintiff and specifically restrict Plaintiff from receiving privileged documents. Defendant's motion to quash is DENIED. This court does find that Defendant did not act in bad faith in not responding to Plaintiff's subpoena. Plaintiff's request for sanctions is DENIED.
9:00 15	26CV486523	Imelda Ayala vs. Don Miguel Burrito	Defendant files a demurrer to Plaintiff's complaint. Plaintiff filed no opposition to Defendant's demurrer. In addition, Plaintiff's complaint is time barred and states no legal cause of action. Defendant's demurrer is GRANTED WITHOUT LEAVE TO AMEND.

Calendar Lines 5-7

Case Name: *"Janine" Chun Lu v. Marc Goubert et al.*

Case No.: 23CV428070

Samuel and Serena Arvayo (the "Arvayo Defendants") demur to the first amended complaint ("FAC") filed by plaintiff "Janine" Chun Lu ("Lu"). The Arvayo Defendants have also brought a special motion to strike the FAC under Code of Civil Procedure section 425.16. Lu has filed a motion for summary judgment, or in the alternative, summary adjudication, as to the cross-complaint filed by Samuel, Serena, and Ezekiel Arvayo ("Cross-complainants").¹

I. THE ARVAYO DEFENDANTS' SPECIAL MOTION TO STRIKE

A. Request for Judicial Notice

The court GRANTS the Arvayo Defendants' request for judicial notice in support of their special motion to strike. (Request for Judicial Notice in Support of the Arvayo Defendants' Special Motion to Strike, Ex. A; Evid. Code, § 452, subd. (d).)

B. General Legal Standards

Code of Civil Procedure section 425.16 authorizes a person to bring a special motion to strike allegations "arising from any act . . . in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue." (Code Civ. Proc., § 425.16, subd. (b)(1).) This is commonly referred to as an "anti-SLAPP" motion.

¹ At various points, the court refers to Cross-complainants by their first names for purposes of clarity. No disrespect is intended. (See *Rubenstein v. Rubenstein* (2000) 81 Cal.App.4th 1131, 1136, fn. 1.)

Courts evaluate anti-SLAPP motions using a two-step analysis. (*Country Side Villas Homeowners Assn. v. Ivie* (2011) 193 Cal.App.4th 1110, 1116.) “First, the moving defendant must identify ‘all allegations of protected activity’ and show that the challenged claim arises from that activity.” (*Bel Air Internet, LLC v. Morales* (2018) 20 Cal.App.5th 924, 934, internal citations omitted.) “Second, if the defendant makes such a showing, the ‘burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated.’ Without resolving evidentiary conflicts, the court determines ‘whether the plaintiff’s showing, if accepted by the trier of fact, would be sufficient to sustain a favorable judgment.’” (*Ibid.*, internal citations omitted.)

C. First Step: Protected Activity

“A defendant meets his or her burden on the first step of the anti-SLAPP analysis by demonstrating the acts underlying the plaintiff’s cause of action fall within one of the four categories spelled out in [Code of Civil Procedure] section 425.16, subdivision (e).” (*Collier v. Harris* (2015) 240 Cal.App.4th 41, 50-51, internal citations omitted.) Examples of protected speech include:

(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.

(Code Civ. Proc., § 425.16, subd. (e).)

“In deciding whether the ‘arising from’ requirement is met, a court considers the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.” (*Peregrine Funding, Inc. v. Sheppard Mullin Richter & Hampton LLP* (2005) 133 Cal.App.4th 658, 670, internal citations and quotation marks omitted.)

“At the first step [of an anti-SLAPP analysis], the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them.” (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 396 (*Baral*).)

The Arvayo Defendants seek to strike “the challenged media-related allegations from the First Amended Complaint, including Paragraphs 46 through 58, Paragraph 63 to the extent it relies on an alleged ‘media campaign,’ and Paragraphs 82 through 83 to the extent they rely on an alleged ‘media campaign’ and ‘false media narratives.’” (Memorandum of Points and Authorities in Support of Anti-SLAPP Motion (“Anti-SLAPP MPA”), p. 4:25-28.)

The Arvayo Defendants argue that the FAC alleges that Serena Arvayo “gave interviews to the Sacramento Bee and NBC News regarding this lawsuit, that media coverage followed, that members of the public commented on the dispute, that a petition was circulated, and that Plaintiff thereafter experienced public criticism and alleged third-party harassment. Plaintiff then incorporates those allegations into her causes of action for civil harassment, private nuisance,

and intentional infliction of emotional distress, alleging that Defendants ‘launched a media campaign’ and engaged in ‘false media narratives.’” (Anti-SLAPP MPA, p. 4:8-13.)

First, the Arvayo Defendants seek to strike “the challenged media-related allegations from the First Amended Complaint, including Paragraphs 46 through 58 . . .” (Anti-SLAPP MPA, p. 4:25-28.) However, paragraphs 46 through 58 of the FAC are not the proper subject of an anti-SLAPP motion. Code of Civil Procedure section 425.16, subdivision (b) states that a “*cause of action* against a person arising from any act of that person in furtherance of the person’s right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike . . .” (Code Civ. Proc., § 425.16, subd. (b), emphasis added.) The “term ‘cause of action’ as used in section 425.16 does not have the same definition of ‘cause of action’ as used in other contexts. Instead, the *Baral* court concluded ‘cause of action’ in section 425.16 meant ‘allegations of protected activity that are asserted as grounds for relief’ within a cause of action in a complaint.” (*Miskewycz v. County of Placer* (2024) 99 Cal.App.5th 67, 74, internal citations omitted.) Paragraphs 46 through 58 of the FAC are not allegations “asserted as grounds for relief within a cause of action.” (*Ibid.*)

Second, the paragraphs the Arvayo Defendants reference in the anti-SLAPP MPA and explicitly seek to strike do not underlie the FAC’s second cause of action for private nuisance. (FAC, ¶¶ 66-69.) Nor do these allegations appear to support the FAC’s second cause of action. (*Ibid.*)

As to paragraphs 63, 82, and 83, these paragraphs do include allegations asserted as grounds for relief within the FAC’s first and fifth causes of action. The court acknowledges that these causes of action are not premised solely on the purportedly protected speech at issue here. (FAC, ¶¶ 61-65, 81-88.) However, the Arvayo Defendants’ alleged “media campaign” and “false media narratives” do appear to form, at least in part, the basis for both of these causes of action. (*Id.* at ¶¶ 63 [“This conduct includes . . . a media campaign that incited community harassment . . .”]; 82 [“Defendants’ Sam Arvayo and Serena Arvayo . . . then launched a media campaign that incited community harassment . . .”].)

Lu argues that the FAC’s first and fifth causes of action are “independently supported by allegations that have nothing to do with the media campaign.” (Opposition to Anti-SLAPP Motion (“Anti-SLAPP Opposition”), p. 3:1-25.) However, when “relief is sought based on allegations of both protected and unprotected activity, *the unprotected activity is disregarded at this stage. . .*” (*Baral, supra*, 1 Cal.5th at p. 396, emphasis added.)

The court agrees with the Arvayo Defendants that the allegations that the Arvayo Defendants seek to strike “arise from,” at least in part, protected activity under Code of Civil Procedure section 425.16. As both parties acknowledge, Code of Civil Procedure section 425.16, subdivision (e)(3) encompasses statements made to news outlets. (*Nygard, Inc. v. Uusi-Kerttula* (2008) 159 Cal.App.4th 1027, 1038 [“We conclude that newspapers and magazines are public fora within the meaning of section 425.16, subdivision (e)(3).”].) Furthermore, the court notes that “an issue of public interest within the meaning of section 425.16, subdivision (e)(3) is *any issue in which the public is interested*. In other words, the issue need not be ‘significant’ to

be protected by the anti-SLAPP statute—it is enough that it is one in which the public takes an interest.” (*Id.* at p. 1042, emphasis original.)

Here, the FAC itself alleges that the “public” took an interest in the issues implicated by the Arvayo Defendants, and Lu has not submitted any argument as to this point. (FAC, ¶¶ 51-52 [“Thousands of individuals were organized through social media, with over 25,000 signatures gathered on a petition demanding that the presiding judge dismiss Plaintiff’s complaint. These organized media campaigns, viewed and read by thousands and possibly millions of people, turned the local community into hostile advocates against Plaintiff, creating ferocious public outrage based on false and misleading characterizations of Plaintiff’s complaint.”].)

The court is also inclined to agree with the Arvayo Defendants’ arguments under Code of Civil Procedure section 425.15, subdivision (e)(2). (Code Civ. Proc. § 425.16, subd. (e)(2).) Subdivision (e)(2) provides that an “act in furtherance of a person’s right of petition or free speech under the United States or California Constitution in connection with a public issue includes . . . any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law.” (*Ibid.*, internal quotation marks omitted.) “Cases construing the anti-SLAPP statute hold that a statement is in connection with litigation under section 425.16, subdivision (e)(2) if it relates to the substantive issues in the litigation and is directed to persons having some interest in the litigation.” (*Optional Capital, Inc. v. Akin Gump Strauss, Hauer & Feld LLP* (2017) 18 Cal.App.5th 95, 113-114, internal quotation marks and citation omitted.) Here, Lu filed the initial complaint in 2023. The FAC alleges that the Arvayo Defendants gave interviews regarding this lawsuit in March 2024. (FAC, ¶¶ 46-47.) The court struggles to see how this alleged speech is not connected with an issue “under consideration or review by a . . . judicial body.” (Code Civ. Proc. § 425.16, subd. (e)(2).) Lu does not offer any argument as to this point in opposition.

As the Arvayo Defendants have made a threshold showing that the challenged allegations in the FAC’s first and fifth causes of action arise from protected activity, the court must then determine whether Lu has demonstrated a probability of prevailing on these causes of action.

D. Second Step: Probability of Prevailing

A plaintiff meets its burden of showing a probability of prevailing by demonstrating “that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.” (*Soukop v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 291 (*Soukop*), internal citations and quotation marks omitted.) This “probability of prevailing” standard is similar to the standard governing a motion for summary judgment in that it is the plaintiff’s burden to make a prima facie showing of facts that would support a judgment in the plaintiff’s favor. (*Taus v. Loftus* (2007) 40 Cal.4th 683, 714.) Stated differently, the “plaintiff need only establish that his or her claim has ‘minimal merit’ to avoid being stricken as a SLAPP.” (*Soukup, supra*, 39 Cal.4th at p. 291, internal citations omitted.)

1. First Cause of Action: Civil Harassment

Paragraph 63 underlies the FAC’s first cause of action for civil harassment. (FAC, ¶¶ 61-65.) The FAC alleges that the Arvayo Defendants created “triggering conditions that aggravated their child’s disability 26 times per year, continu[ed] . . . gatherings after complaints, perpetuat[ed] the pattern for over four years, and launch[ed] a media campaign that incited community harassment including trespassing, threatening calls, and attempted break and entry.” (*Id.* at ¶ 63.)

First, the court notes that it is unclear to the court how Lu’s “causation” and “false light” arguments relate to her burden in demonstrating a “probability of prevailing” such that she has met her burden on the second step of an anti-SLAPP analysis as to either the FAC’s first or fifth causes of action. (Anti-SLAPP Opposition, pp. 4:6-5:20.)

Lu’s opposition otherwise fails to identify how any evidence submitted indicates a “probability of prevailing” on a cause of action for “civil harassment.” Rather, Lu argues that “media allegations are one component of a multi-factor course of conduct claim. Striking them leaves the civil harassment claim intact based on the four-year noise campaign, the direct dehumanizing comments, and the landlord pressure campaign. The motion does not defeat this cause of action.” (Anti-SLAPP Opposition, p. 5:22-25; see *Soukop, supra*, 39 Cal.4th at p. 291 [a plaintiff meets its burden of showing a probability of prevailing by demonstrating “that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.”].)

The court strikes the FAC’s first cause of action to the extent it is predicated upon an alleged “media campaign” and “false media narratives.” The court will not strike other, unrelated allegations and notes that the first cause of action still survives based on alleged unprotected activity. (FAC, ¶ 63 [“This conduct includes deliberately creating triggering conditions that aggravated their child’s disability 26 times per year, continuing these gatherings after complaints, perpetuating the pattern for over four years . . .”].) Thus, the Arvayo Defendants’ special motion to strike the FAC’s first cause of action is **PARTIALLY GRANTED**.

2. Fifth Cause of Action: Intentional Infliction of Emotional Distress

Lu argues that even “striking the media allegations, the [FAC’s intentional infliction of emotional distress] claim independently survives” based on other alleged conduct. (Anti-SLAPP Opposition, p. 6:3-6.) Similar to its discussion of the first cause of action, the court strikes the FAC’s fifth cause of action to the extent it is predicated upon an alleged “media campaign.” The court will not strike other, unrelated allegations. (FAC, ¶ 82.) Thus, the Arvayo Defendants’ motion to strike the FAC’s fifth cause of action is **PARTIALLY GRANTED**.

II. THE ARVAYO DEFENDANTS’ DEMURRER

a. First Cause of Action: Civil Harassment

The court SUSTAINS the Arvayo Defendants’ demurrer to the FAC’s first cause of action without leave to amend. The court has struggled to find any authority suggesting that a common law civil harassment cause of action exists and, relatedly, what would have to be alleged in order to substantiate such a cause of action (assuming it did exist). In fact, the court notes that several federal decisions state that no common law tort of harassment exists in California. (*Copelin v. Athene Annuity & Life Co.* (C.D. Cal. July 31, 2025) 2025 U.S. Dist. LEXIS 147672 at *7 [“There is no common-law tort of harassment under California law.”], internal citation omitted.) Relatedly, Lu cites no legal authority in arguing that the FAC sufficiently pleads “harassment” by purportedly pleading a “willful course of conduct directed at Plaintiff, serving no legitimate purpose, that seriously alarmed, annoyed, and harassed her, causing substantial emotional distress.” (Opposition to Demurrer (“Demurrer Opposition”), p. 3:25-27.) These allegations, however, do appear to align with terms defined in Code of Civil Procedure section 527.6. (Code Civ. Proc., § 527.6, subd. (b)(3) [“‘Harassment’ is unlawful violence, a credible threat of violence, or a *knowing and willful course of conduct directed at a specific person that seriously alarms, annoys, or harasses the person, and that serves no legitimate purpose.* . . .”], emphasis added.)

With this in mind, the FAC appears to bring its first cause of action under Code of Civil Procedure section 527.6. Code of Civil Procedure section 527.6 “was passed to supplement the existing common law torts of invasion of privacy and intentional infliction of emotional distress by providing quick relief to harassment victims threatened with great or irreparable injury.” (*Grant v. Clampitt* (1997) 56 Cal.App.4th 586, 591, internal citation omitted; see also *Schild v. Rubin* (1991) 232 Cal.App.3d 755, 762 [“In 1978 the Legislature enacted Code of Civil Procedure section 527.6, a special statute designed to afford protection against harassment.”], internal citation and quotation marks omitted.) Code of Civil Procedure section 527.6 states that a “person who has suffered harassment as defined in subdivision (b) may seek a temporary restraining order and an order after hearing prohibiting harassment as provided in this section. . . . [a]n individual need not be a resident of the state to file a petition for an order under this section. A petition for an order as specified in paragraph (1) may be filed . . .” (Code Civ. Proc., § 527.6, subd. (a); see also *Siam v. Kizilbash* (2005) 130 Cal.App.4th 1563, 1573 [“[A] section 527.6 petition is not an ordinary civil action. The statute provides for an action to be completed in a matter of weeks and incorporates an expectation that victims may often seek relief without the benefit of a lawyer.”], internal citation omitted.) The “prevailing party in an action brought pursuant to this section may be awarded court costs and attorney’s fees, if any.” (*Id.* at subd. (s), emphasis added.)

Lu has not sought relief through the procedure outlined in Code of Civil Procedure section 527.6 and therefore cannot seek “attorney’s fees pursuant to [Code of Civil Procedure section] 527.6.” (FAC, ¶ 65.) Lu contends that along with creating a specific “restraining order” procedure, Code of Civil Procedure section 527.6 also provides for damages in a “civil damages action.” (Demurrer Opposition, p. 4:12-17.) The court has struggled to find any authority supporting this argument, or, for that matter, any language in the statute supporting this argument. Moreover, the court is not convinced by Lu’s use of *Brekke v. Wills* (2005) 125 Cal.App.4th 1400 (*Brekke*). (*Id.* at p. 4:7-11.) In *Brekke*, the plaintiff followed the procedures outlined in Code of Civil Procedure section 527.6 by seeking a “temporary restraining order and an injunction prohibiting harassment . . .” (*Brekke, supra*, 125 Cal.App.4th at p. 1403, internal

quotation marks and citation omitted; see also *id.* at p. 1407 [“After plaintiff read these letters, she sought a temporary restraining order and injunction against defendant.”], internal citation omitted.) As such, the decision does not appear to stand for the proposition that California “recognizes harassment-based tort liability independent of section 527.6 . . .” (Demurrer Opposition, p. 4:7-9.)

Even putting aside these issues, the court notes that the “quick, injunctive relief provided by section 527.6 lies only to prevent threatened injury—that is, future wrongs—and is not intended to punish the restrained party for past acts of harassment.” (*Olson v. Doe* (2022) 12 Cal.5th 669, 678, internal citations and quotation marks omitted.) The FAC’s first cause of action appears to seek redress for conduct that occurred in the past. (FAC, ¶¶ 61-64 [“Defendants Serena Arvayo and Sam Arvayo *engaged* . . .”].)

b. Fifth Cause of Action

The court SUSTAINS the Arvayo Defendants’ demurrer to the FAC’s fifth cause of action with 10 days’ leave to amend. “A cause of action for intentional infliction of emotional distress exists when there is (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct. A defendant’s conduct is outrageous when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. And the defendant’s conduct must be intended to inflict injury or engaged in with the realization that injury will result. Liability for intentional infliction of emotional distress does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities. If properly pled, a claim for sexual harassment can establish the outrageous behavior element of a cause of action for intentional infliction of emotional distress. With respect to the requirement that the plaintiff show emotional distress, this court has set a high bar. Severe emotional distress means emotional distress of such a substantial quality or enduring quality that no reasonable [person] in civilized society should be expected to endure it.” (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050-1051, internal quotations and citations omitted.)

The FAC’s fifth cause of action alleges that the Arvayo Defendants’ “conduct was extreme and outrageous because they deliberately exploited their disabled child’s known vulnerabilities for personal entertainment, subjecting him to conditions they admitted would aggravate his disability twenty-six (26) times per year for four years, then launched a media campaign that incited community harassment against Plaintiff, all as described in the General Allegations.” (FAC, ¶ 82.)

Given the court’s discussion on the Arvayo Defendants’ anti-SLAPP motion, the FAC’s fifth cause of action cannot rely on allegations related to the alleged launching of a “media campaign” or “false media narratives.” (FAC, ¶¶ 82-83.) This leaves the allegations that the Arvayo Defendants “exploited their disabled child’s known vulnerabilities for personal entertainment, subjecting him to conditions they admitted would aggravate his disability . . .”

(*Ibid.*) This alleged conduct, however, is directed at *Ezekiel Arvayo*, not Lu, and therefore cannot support a cause of action for intentional infliction of emotional distress against Lu.

Lu argues that the “FAC does not allege that Defendants harmed Ezekiel and that Plaintiff was a collateral victim. The FAC alleges that Defendants deliberately used Ezekiel’s known disability triggers as the mechanism by which they generated the sustained noise conditions that harassed Plaintiff, by repeatedly creating the exact environmental conditions Serena Arvayo admitted under oath would aggravate his disability and cause distressing behavioral episodes. The outrageousness of that conduct is directed squarely at Plaintiff.” (Demurrer Opposition, p. 6:4-9, internal citations omitted.)

The allegations underlying the FAC’s fifth cause of action, however, do not actually appear to allege this. (See FAC, ¶ 82.) Again, the court reiterates that the FAC alleges that the Arvayo Defendants’ “conduct was extreme and outrageous because they deliberately exploited their disabled child’s known vulnerabilities for personal entertainment, subjecting him to conditions they admitted would aggravate his disability twenty-six (26) times per year for four years, then launched a media campaign that incited community harassment against Plaintiff . . .” (*Ibid.*) The only alleged conduct directed at Lu appears to be the “launching of a media campaign.”

III. LU’S MOTION FOR SUMMARY JUDGMENT

Lu moves for summary judgment, or, in the alternative, summary adjudication, as to the first, second, and third causes of action alleged in the cross-complaint.

The court is inclined to agree with Cross-complainants that Lu’s motion lacks sufficient notice. (Opposition to Motion for Summary Judgment (“Summary Judgment Opposition”), pp. 1:26-2:26.)

Code of Civil Procedure section 437c, subdivision (a)(2) provides that notice of a summary judgment motion “shall be served on all other parties to the action at least 81 days before the time appointed for hearing. . . . If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days.” (Code Civ. Proc., § 437c, subd. (a)(2).) Lu initially served notice of the motion on June 4, 2026 through email, for a hearing date on October 20, 2026. Neither party appears to dispute that this initial notice was timely under Code of Civil Procedure section 437c. On July 30, 2026, Lu served a notice of entry of order granting Lu’s ex parte application to advance the hearing date from October to August 25, 2026. As Cross-complainants point out, however, 81 calendar days prior to August 25, 2026, plus two days for electronic service, is *June 3, 2026*—Lu served the motion on June 4, 2026.

Lu does not dispute any of the above but instead argues that the “notice statute is satisfied at the time of service, and the court’s subsequent advancement of the hearing was an authorized exercise of judicial scheduling authority.” (Reply in Support of Summary Judgment (“Reply”), pp. 2:13-3:11.) In support of this argument, Lu contends that the court properly granted Lu’s ex parte application to advance the hearing date under California Rules of Court, rules 3.1300(b)

and 3.13335(a). (*Id.* at p. 3:3-10.) However, California Rules of Court, rule 3.1300(b) concerns “papers” filed under Code of Civil Procedure section 1005. (Cal. Rules of Court, rule 3.1300(b).) Section 1005 does not address notice requirements for a summary judgment motion; Code of Civil Procedure section 437c does. (Code of Civ. Proc., § 1005, subd. (a)(13) [“Written notice shall be given, as prescribed in subdivisions (b) and (c), for the following motions . . . [a]ny other proceeding under this code in which notice is required, and *no other time or method is prescribed by law or by court or judge.*”], emphasis added; Code of Civ. Proc., § 437c, subd. (a)(2) [“Notice of the motion . . .”].) California Rules of Court, rule 3.1335 concerns advancing a “case for trial.” (Cal. Rules of Court, rule 3.1335.)

Ultimately, the “importance of providing the minimum statutory notice of a summary judgment hearing cannot be overemphasized.” (*Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1262 (*Robinson*).) “[A] trial court *does not have authority to shorten the minimum notice period for summary judgment hearings absent the express consent of the parties.*” (*Id.* at p. 1264, internal citation omitted, emphasis added.) Where the moving party notices the hearing in less than the required time, notice must begin anew. (*Id.* at p. 1268.) The court cannot cure this defect by continuing the hearing for the missing number of days. (*Ibid.*)

In light of a pending trial date of September 28, 2026 and the rule in *Robinson* that the court cannot simply cure a defect in notice by continuing a hearing for the missing number of days, it would be impossible to continue the hearing on the motion such that the statutory notice period could begin anew. Possible cures for this defect include the parties’ express consent to a shortened notice period.

The court DENIES Lu’s motion for summary judgment without prejudice.